

CONFLICT OF INTEREST DECLARATION AND ETHICAL STATEMENT

Honourable Speaker and Portfolio Committees,

This report is submitted in the public interest by a whistleblower who has suffered severe occupational detriment, destitution, and homelessness as a direct consequence of the conduct documented herein. The author and complainant, Sr. Wilbur William Matthee, declares the following interests and ethical commitments in the spirit of full transparency required by the Constitution, the Protected Disclosures Act 26 of 2000, and the ethical codes of the compliance and nursing professions.

1. IDENTITY OF THE COMPLAINANT AND AUTHOR

The complainant and the author of this report are the same person: Wilbur William Matthee, a Specialist Registered Nurse (SANC No. 15831886), holder of a Postgraduate Diploma in Health Services Management (NQF Level 8), and the founder of EthicHawks Forensic Governance and Compliance Consultancy.

The complainant is also the subject of the retaliation, the unlawful salary deduction, the constructive dismissal, and the regulatory and judicial failures documented in this report. He appears before Parliament in person, self-represented, and without legal representation because he is destitute.

This is not a third-party report. It is a primary source testimony from the person who lived every failure documented herein.

2. NATURE OF THE INTEREST – PERSONAL AND PROFESSIONAL

The complainant has a direct personal and financial interest in the remedies sought in this report, including but not limited to:

- The repayment of the unlawfully deducted salary of R14,811.77 (plus interest);
- Compensation for occupational detriment under the Protected Disclosures Act;
- Compensation for automatically unfair constructive dismissal under the Labour Relations Act;
- The correction of his statutory employment records (UI-19, Certificate of Service);
- The remediation of the systemic clinical risk (Gexus-DMS integration gap) affecting GEMS members.

This interest is fully declared and is not concealed. The complainant makes no apology for seeking remedy for the harm he has suffered. However, he separates his personal claim for damages (which is properly before the Labour Court) from his constitutional petition for parliamentary oversight (which is the subject of this report).

The personal interest does not diminish the public interest in the systemic failures documented herein. The two interests coexist. A whistleblower who has been destroyed by a system is not disqualified from asking Parliament to fix that system.

3. THE COMPLAINANT'S PROFESSIONAL AND ETHICAL FRAMEWORK

The complainant operates within the following professional and ethical frameworks:

Framework Status Relevance

South African Nursing Council (SANC) Registered Nurse Specialist – currently deregistered due to inability to pay fees caused by the employer’s unlawful deduction The deregistration itself is evidence of the harm suffered.

Compliance Institute of Southern Africa (CISA) Pledge to the Code of Ethical and Professional Conduct; membership designation CPrAc(SA) – pending final certification modules The complainant has formally pledged to adhere to the ethical standards of the compliance profession, including independence, objectivity, and confidentiality.

Protected Disclosures Act 26 of 2000 The complainant is a protected whistleblower This report is itself a protected disclosure under Section 8 of the PDA (disclosure to Parliament as an appropriate authority).

Constitution of the Republic of South Africa, 1996 The complainant invokes Sections 10, 26, 27, 33, 34, and 56 This report is a petition under Section 56 (right to petition Parliament).

The complainant’s ethical pledge to CISA is reproduced in full below:

“I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this report, ensuring that all findings are presented with the integrity, independence, and professional care required of the compliance profession.”

4. THE COMPLAINANT’S RELATIONSHIP WITH THE SUBJECT MATTER – NOT A THIRD-PARTY REPORT

Unlike a consulting firm that might be commissioned by a third party, the complainant is the person who:

- Identified the Gexus-DMS integration gap;
- Made the protected disclosure;
- Was retaliated against;
- Exhausted every institutional remedy;
- Approached the courts;
- Was silenced by an interim interdict;
- And now approaches Parliament.

There is no principal behind this report. There is no paying client. There is no corporate sponsor. There is only a destitute, homeless, deregistered nurse who has run out of other doors to knock on.

This is not a conflict. It is the foundational truth of the entire document.

5. ETHICAWKS – THE CONSULTANCY

The complainant is the founder of EthicHawks Forensic Governance and Compliance Consultancy. EthicHawks is not a party to this report as a commercial entity. The consultancy is the vehicle through which the complainant conducts forensic governance analysis. No third party has commissioned, funded, or influenced this report.

Aspect Disclosure

Is EthicHawks receiving payment for this report? No. The complainant is destitute. There is no payment.

Has any third party commissioned this report? No. This report is a protected disclosure made directly to Parliament.

Does EthicHawks have any contractual relationship with any party mentioned in this report? No. The complainant was an employee of Medscheme, which terminated his employment constructively. There is no ongoing commercial relationship.

Does EthicHawks have any current or pending contracts with the NHI Fund, the Department of Health, or any regulatory body mentioned? No.

The complainant's commercial interest – if any – is prospective. He has proposed forensic governance architecture for the NHI (as set out in the article attached to this report). That proposal is a matter of public policy, not a tender. If Parliament were to adopt any of those proposals, the complainant would be in the same position as any other compliance professional who might offer services in a competitive process. This is not a conflict. It is a professional opinion submitted in the public interest.

6. THE CHILLING EFFECT – WHY THIS DECLARATION IS NECESSARY

The complainant anticipates that the employer and its legal representatives may attempt to use this Conflict of Interest Declaration to discredit the report. The employer has already:

- Characterised a quantified damages schedule as “extortion” ;
- Obtained an interim interdict by concealing the complainant's answering affidavit (a fraud on the court);
- Threatened the complainant with contempt of court for petitioning Parliament;
- Deployed a “without prejudice” settlement overture followed by silence to delay the parliamentary submission.

The employer will likely argue that the complainant is not an objective witness. This argument is answered as follows:

1. No one else has done this work. The complainant has compiled a 526-document evidentiary bundle because no regulator, no court, and no law firm has done so. The absence of any other party with the resources, access, or incentive to compile this record is itself evidence of systemic failure.
2. The documentary record speaks for itself. The Root Cause Analysis (VICT1) was generated by Medscheme's own systems. The payslip (PS2) was generated by Medscheme's own payroll. The CRO suppression email (18 Dec 2025) was written by the employer's own Chief Risk Officer. The false UI-19 was submitted by the employer's own HR official. These documents are not the complainant's opinion. They are the employer's own records.
3. The complainant's destitution is not a conflict – it is the consequence of the conduct documented. A destitute whistleblower is not less credible. He is more credible, because he has nothing to gain from fabrication and everything to lose from continued destitution.
4. The complainant has invited independent verification of every fact. The full evidentiary bundle is available to any Portfolio Committee, any parliamentary legal officer, and any independent forensic investigator that Parliament may appoint.

7. THE PUBLIC INTEREST OVERRIDES ANY PRIVATE INTEREST

Section 56 of the Constitution guarantees the right of any citizen to petition Parliament. That right is not conditional on the petitioner having no personal interest in the subject matter. On the contrary, citizens with direct experience of institutional failure are often the most credible and necessary petitioners.

The public interest in this report is overwhelming:

- A systemic clinical risk affecting 1.9 million GEMS members (government employees) remains unaddressed.
- Fifteen (15) statutory, regulatory, and judicial bodies have failed to provide a remedy.
- The National Health Insurance – with a projected budget of R200 billion annually – is being built on governance architecture that this case proves is broken.
- The chilling effect on whistleblowers is already real and will be magnified under the NHI.

The complainant's personal claim for damages (R14,811.77 plus interest) is less than 0.00007% of the NHI's annual budget. It is not the subject of this report. This report is about the systemic collapse of accountability that enabled that deduction to happen without consequence.

8. DECLARATION UNDER OATH

I, Wilbur William Matthee, declare under oath that:

1. The facts set out in this report are true and correct to the best of my knowledge and belief, and are supported by primary source documents referenced throughout.
2. I have a direct personal and financial interest in the remedies sought, which is fully declared.
3. The public interest in the systemic failures documented herein is distinct from and outweighs any private interest.
4. No third party has commissioned, funded, or influenced this report. EthicHawks is not receiving any payment for this report.
5. I have not been induced to make this report by any person or entity. I am making this report of my own free will, in the exercise of my constitutional right to petition Parliament under Section 56 of the Constitution.

6. I am aware that making false statements in a submission to Parliament may be a criminal offence. I have not made any false statements.

7. The audio recording of the Delft Police Station officer falsely claiming to be the station commander, and all other primary source documents referenced in this report, are available to Parliament upon request.

I make this declaration in good faith, under the protections of the Protected Disclosures Act 26 of 2000, and in the full knowledge that false statements may constitute perjury.

Signed at Cape Town on this _____ day of June 2026.

Wilbur William Matthee

RN | BTech General Nursing | PGDip Health Services Management (NQF 8)

Founder – EthicHawks Forensic Governance & Compliance Consultancy

Pledges to CISA Code of Ethical and Professional Conduct (Membership Designation: CPrAc(SA) – pending final certification modules)

Email: info@ethichawks.co.za

Sworn to and signed before me at _____ on this _____ day of June 2026.

COMMISSIONER OF OATHS

Full name: _____

Capacity: _____

Address: _____

Area of jurisdiction: _____

Appointment expiry: _____

This Conflict of Interest Declaration is an integral part of the Consolidated Forensic Oversight Report and must be read together with the foreword, executive summaries, and evidentiary sections that follow.

Drafting Note to the Honourable Speaker and Portfolio Committees

The complainant requests that this Conflict of Interest Declaration be placed on the record and that no adverse inference be drawn from the fact that the petitioner is also the subject of the harms documented. The Constitution guarantees the right of any citizen to petition Parliament. That right is most urgently needed by citizens who have exhausted every other remedy – as this petitioner has done.

The employer's legal representatives may attempt to argue that this report is "self-serving." The complainant answers that argument in advance: a report compiled by a destitute, homeless, deregistered nurse who has been silenced by a court order is not "self-serving" – it is the last resort of a citizen whom the system has failed.

Parliament is the appropriate forum for this petition. The personal interest is declared. The public interest is overwhelming. The evidence is attached. The time to act is now.
